

26NNCV00100 26NNCV00100

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-21

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Case Number: 26NNCV00100 Hearing Date: August 21, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Authorize Electronic Service

Hearing Date: 8/21/26

CASE NO.: 26NNCV00100

CASE NAME: VW Credit Inc. v. GG

Motorsport, Inc., et al.

Moving Party: Plaintiff VW Credit Inc.

dba VW Credit Leasing Ltd

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANTED

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this

matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal property dispute action.

On January 7, 2026, Plaintiff VW Credit Inc. dba VW Credit Leasing Ltd (Plaintiff) filed a Complaint against defendants GG Motorsport, Inc. (Motorsport); California Department of Motor Vehicles; and DOES 1-10 inclusive asserting causes of action for (1) claim and delivery of personal property; (2) conversion; (3) quiet title; and (4) declaratory relief. On May 26, 2026, Plaintiff filed the instant motion seeking an order authorizing service of summons to Motorsport via electronic mail.

On July 31, 2026, the matter was called for hearing, and Plaintiff's counsel requested a continuance to file a supplemental declaration to provide the Court with more information on which to base its decision. The Court granted Plaintiff's request.

On August 21, 2026, Plaintiff filed a supplemental declaration in support of the motion to authorize service of summons by electronic mail.

LEGAL

STANDARD

"If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court." (Code Civ. Proc., § 413.30, subd. (a)(1).) This requires a plaintiff to "set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute." (Code Civ. Proc., § 413.30, subd.

(a)(2).)

DISCUSSION

Plaintiff argues

that they have exercised reasonable diligence to attempt service through authorized methods but have not been able to personally serve Motorsport at its principal place of business or the residential address of its owner. (Mot., p. 2.) For this reason, Plaintiff moves the court to authorize service via electronic mail. (Ibid.)

First, Plaintiff

attempted to serve Motorsport at its business address, but the premises was vacant. (Mot., p. 3.) Per an onsite manager, Plaintiff argues that Motorsport moved off the premises three years ago. (Krugliak Decl., Exh. D; Mot., p. 3.) Subsequently, Plaintiff attempted to serve Motorsport's sole owner and agent at their residential address but was unsuccessful. (Krugliak Decl., Exh. E; Mot., p. 3.) Plaintiff seeks to serve Motorsport using a business email found on an invoice issued by Motorsport prior to the commencement of this action. (Mot., p. 4.) Plaintiff's counsel declares that they have communicated with Motorsport's sole owner via email before and received an immediate response. (Krugliak Decl., ¶ 9.) Thus, Plaintiff's counsel declares that this is the most likely method for providing notice of the summons, complaint, and other related documents. (Ibid.)

In the

supplemental declaration, Plaintiff's counsel declares that the mailing address on record for Defendant is outdated or unreliable and in light of unsuccessful attempts at that address, there is no reason to believe Defendant would receive notice at that address. (Supp. Decl., ¶ 7.) Plaintiff's counsel also declares that the address on file with the Secretary of State as Defendant's principal place of business is similarly outdated and unreliable. (Supp. Decl., ¶ 8.) Plaintiff's counsel declares that they have had success communicating with Defendant through a confirmed email address in a previous action and as recent as August 10, 2026, when sharing a courtesy copy of the notice of continuance. (Supp. Decl., ¶¶ 11-15.) Further, Plaintiff's counsel declares that the court in its previous lawsuit against Defendant (Case No. 26VECV01113) granted its motion to serve by electronic mail based on these facts. (Supp. Decl., ¶ 11.)

Here, reasonable

efforts to personally serve Motorsport have been exhausted. (Krugliak Decl., Exh. E.) Motorsport's mailing address and principal place of business address appear to be outdated, and Plaintiff has attempted service at the residential address of its owner or agent. (Supp. Decl., ¶ 5.)

Under section 413.30 the court is authorized "to direct that summons be served in a manner that is reasonably calculated to give actual notice", this doesn't necessarily mean electronic service. (Code Civ. Proc., § 413.30(a)(1).) Plaintiff has shown, through supplemental declaration, that service through electronic mail is reasonably calculated to give actual notice. Defendant has responded to Plaintiff's communications through the email address provided and the court, in a prior lawsuit between the same parties, has authorized electronic service based on these facts.

Accordingly, the motion is GRANTED.

CONCLUSION
AND ORDER

Plaintiff VW Credit Inc.'s Motion to
Authorize Electronic Service is GRANTED.

MOVING PARTY shall provide notice and
provide a proposed order consistent with this ruling within 15 days from this
date.